

23TRCV02994 23TRCV02994

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-09

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Case Number: 23TRCV02994 Hearing Date: September 9, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

ILIA

SERPIK,

Plaintiff,

Case No.:

23TRCV02994

vs.

[TENTATIVE]

RULING

CITY

OF HERMOSA BEACH,

Defendant.

Hearing

Date: September 9,
2026

Moving Parties: Plaintiff Ilia Serpik

Responding Party: Defendant Moore, Iacofano
& Goltman, Inc.

(1)

Motion

to Compel Further Responses to Form Interrogatories, Set One

(2)

Motion

to Compel Further Responses to Special Interrogatories, Set One.

(3)

Motion

to Compel Further Responses to Requests for Production of Documents, Set One

The Court considered the moving, opposition, and reply papers.

RULING

See Order below.

BACKGROUND

On September

11, 2023, plaintiff Ilia Serpik (self-represented) filed a complaint against
City of Hermosa Beach for dangerous condition of public property.

On

August 14, 2025, City of Hermosa Beach filed a cross-complaint against Moore,
Iacofano & Goltzman, Inc. and Green Giant Landscape, Inc. for (1) equitable
indemnity, (2) express indemnity and (3) breach of contract.

On February 9, 2026, plaintiff
filed an amendment designating Green Giant Landscape, Inc. as Doe 1.

On
February 11, 2026, plaintiff filed an amendment designating Moore, Iacofano
& Goltsman, Inc. as Doe 2.

On
June 5, 2026, the Court sustained defendant Moore, Iacofano & Goltsman,
Inc.'s demurrer without leave to amend.

LEGAL AUTHORITY

45-Day

Rule: This motion must be served within 45 days
after service of the response in question (extended if served by mail,
overnight delivery, or fax; see CCP §1013); otherwise, the demanding party
waives the right to compel any further response to the CCP §2031.010
demand. CCP §§2031.310(c), 2016.050; see
Sperber v. Robinson (1994) 26 Cal.
App. 4th 736, 745. The 45-day time limit
is mandatory and jurisdictional. Sexton v. Superior Court (1997) 58 Cal.
App. 4th 1403, 1410. The parties,
however, can also agree in writing on a specific later date by which to file
the motion to compel. CCP §2031.310(c).

Meet-and-Confer

Requirement: The motion to compel further responses must
be accompanied by a declaration showing "a reasonable and good faith attempt"
to resolve the issues outside of court (so-called "meet and confer"). CCP §§2016.040, 2031.310(b)(2).

Separate

Statement: Any motion involving the content of a
discovery request or the responses to such a request shall be accompanied by a
separate statement. This includes a
motion to compel further responses to demand for inspection of documents or
tangible things. CRC Rule
3.1020(a)(3).

Interrogatories

CCP

§2030.300 states: "(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. . . . (3) An objection to an interrogatory is without merit or too general.

(b) A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040. (c) Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories. . . ."

Request

for Production of Documents

On

receipt of a response to an inspection demand, the demanding party may move for an order compelling further responses to the demand if the demanding party deems that any of the following apply:

(1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general. CCP §2031.310(a). A statement of compliance shall state that the production, inspection, and related activity demanded will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production. CCP §2031.220. "A representation of inability to comply with

[a] particular demand for inspection . . . shall affirm that a diligent search and reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. This statement shall

set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." CCP §2031.230.

A

motion to compel further response to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." CCP §

2031.310(b)(1). "To establish 'good cause,' the burden is on the moving party to show both: [1] Relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and [2] Specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial).

The fact that there is no alternative source for the information sought is an important factor in establishing 'good cause' for inspection.

But it is not essential in every case." Weil & Brown, Civil Procedure Before Trial, 8:1495.6 (citations omitted). "Declarations are generally used to show the requisite 'good cause' for an order to compel inspection. The declarations must contain 'specific facts' rather than mere conclusions." Id.

at 8:1495.7 (citation omitted). "The declarations may be on information and belief, if necessary. However, in such cases, the 'specific facts' supporting such information and belief (the sources of the information) must also be alleged." Id. at 8:1495.8 (citation omitted).

"Most declarations are made by the attorney for the moving party, who is usually more familiar with the relevancy and 'specific facts' constituting 'good cause' for inspection." Id. at 8:1495.9.

DISCUSSION

Plaintiff Ilia Serpik

requests an order compelling defendant Moore, Iacofano & Goltsman, Inc. to respond further to Form Interrogatories, Set One, Nos. 3.1-3.7, 4.1, 4.2, 12.1-12.7, 13.1, 13.2, 14.1, 14.2, 15.1, 16.1-16.10, and 50.1-50.6; Special Interrogatories, Set One, Nos. 1-45, and Requests for Production of Documents, Nos. 1-40.

The complaint alleges

that on May 20, 2022, plaintiff was visiting South Park playground with his daughter, located at 425 Valley Drive, Hermosa Beach, which his owned, maintained, and/or controlled by defendants City and Does 1 to 20. Plaintiff went down a concrete slide located in the park. Plaintiff's intended use of the slide propelled him in such a manner as to cause him to break his leg, causing severe and persistent injury.

Plaintiff had no knowledge that the slide was dangerous and was creating speeds that could cause severe injury.

Plaintiff went down the slide and suffered severe injuries to his body. Complaint, ¶¶6-7.

Plaintiff explains that on February 10, 2026, he served his written discovery on defendant.

On May 14, defendant served objections only. Plaintiff sent a meet and confer letter and requested code-compliant supplemental responses. As of the date of the motions, defendant had not served further responses.

The Court notes that the only claims against defendant Moore, Iacofano & Goltsman are in City of Hermosa Beach's cross-complaint. The Court had sustained defendant's demurrer without leave to amend as to the complaint.

Form

Interrogatories

In the opposition, defendant agrees to provide a supplemental response to Nos. 13.1, 13.2, 14.1, 14.2, 16.1-16.5, 16.9, 16.10, and 50.1-50.6.

As to Nos. 3.1-3.7, 4.1, 4.2, 12.1-12.7 and 15.1, defendant asserts that it had already responded on March 6, 2026.

In the reply, as to the interrogatories defendant contends it had already responded, plaintiff notes that defendant had responded to City of Hermosa Beach, which does not "discharge" defendant's duty to serve verified responses to plaintiff.

The motion is GRANTED.

Special

Interrogatories

In the opposition, defendant defends its objections but agrees to “provide a supplemental response” to Nos. 1-12, 15-24, 27, 29-35, 37, and 41-45.

The following interrogatories remain at issue:

No. 13 – did defendant design the subject slide with the intent that it be used by adults as well as children? Defendant served objections, and in the opposition argues that “[n]othing in the action pending relates to ‘foreseeability’ and as such the information sought is not relevant.” Plaintiff argues that based on the definition of “dangerous condition” under Gov. Code §830(a), whether adults were foreseeable users of the slide is an “element-level issue” in plaintiff’s claim against the City and “the designer’s own intent and anticipation of such use is direct evidence on it.”

No. 14 – did defendant design the subject slide with the intent that it be used by adults holding children on their laps? See arguments under No. 13.

The Court finds that as to Nos. 13 and 14, defendant’s objections lack merit.

No. 28 – did defendant advise the City that concrete slides pose a higher risk of bone fractures than plastic or composite slides? Defendant served objections and argues that the interrogatory is argumentative and that the “incomplete hypothetical renders” it not reasonably calculated to lead to the discovery of admissible evidence. Plaintiff argues that the interrogatory asks about defendant’s “own historical communications with the City” and that “[w]hat the designer told the public entity about the risks of a concrete slide is direct evidence of the City’s actual notice.”

The Court finds that defendant’s objections have merit.

No. 36 – identify the insurance carrier(s) affording defendant professional liability (Errors & Omissions) coverage for this project. Defendant contends that it provided the information to plaintiff on March 6, 2026. Plaintiff argues that defendant's response to a different party does not discharge its duty to respond to plaintiff.

The Court finds that defendant's objections lack merit.

Nos. 25,
26, 38, 39, 40

No. 25 – did defendant design the "Use Zone" (the safety area with impact-absorbing surfacing) at the exit of the subject slide? Defendant served objections and argues in the opposition that by his own testimony, plaintiff's injury occurred while on the slide, and that there is no mention or reference to injury occurring in the Use Zone anywhere in the complaint or cross-complaint and thus the interrogatory is "wholly irrelevant to the facts as alleged in this case."

Plaintiff argues that the "geometry, finish, runout, use zone, surfacing, and related design features of the slide bear directly on the dangerous-condition and design-immunity questions in this case."

No. 26 – did defendant specify the type and depth of the impact-attenuating material (e.g., engineered wood fiber, rubber) to be installed in the Use Zone? Defendant responded same as No. 25. Defendant's response is same as No. 25. See No. 25 for plaintiff's argument.

No. 38 – did defendant verify that the cross-slope (drainage slope) of the slide bedway did not exceed the maximum allowed by ASTM F1487 for sliding surfaces? Defendant served objections and also responded that the "final design provided by Responding Party complied with ASTM F1487." Defendant also argues that the injury occurred while on the slide and that there is no mention or reference to a drainage slope and thus the interrogatory is irrelevant to the facts as alleged in this case. Plaintiff asserts

that defendant's response is non-responsive and unverified. See also plaintiff's argument under No. 25.

The Court finds that as to Nos. 25, 26, and 38, defendant's objections lack merit.

No. 39 – did defendant specify the height of the slide sidewall to prevent users from falling out during descent? Defendant served objections and argues that users "falling out during descent" is not at issue and that the sidewalls are irrelevant. Plaintiff argues that whether the sidewall height is ultimately dispositive, it is part of the slide's design within the broad scope of discovery.

No. 40 – did defendant calculate the "critical fall height" for the subject slide to determine the necessary shock-absorption properties of the surfacing material? Defendant served objections and argues that "critical fall height" is not at issue and irrelevant. Plaintiff argues that design features bear directly on the dangerous condition and design immunity questions in this case.

The Court finds that defendant's objections have merit.

Accordingly, the motion is GRANTED as to 1-27, 29-38, and 41-45. The motion is DENIED as to Nos. 28, 39, and 40.

Request for
Production of Documents

The Court rules as follows: The Court finds that defendant's objections have merit and plaintiff has not shown good cause as to Nos. 2-11 and 14-40, the requests are overbroad and unduly burdensome.

As for No. 1 (contract between City and defendant), 12 (applicable insurance policy), and 13 (maintenance manual), the Court finds that defendant's objections lack merit and plaintiff has shown good cause.

Sanctions

Plaintiff requests \$11,720 against defendant and its attorney of record, Long & Levit LLP, jointly and severally, for all three motions. Plaintiff, an attorney in pro per, states that he retained Andrei Serpik, Esq. to prepare the motions at an hourly rate of \$350. Andrei Serpik states in their declaration that plaintiff retained them on a limited-scope basis and that their hourly rate "for this engagement is \$350, a reasonable rate for discovery-motion work in the Los Angeles market for an attorney" of their experience. The Court notes that counsel's declaration provides no information as to when they graduated law school, bar number, experience, or background.

In opposition, defendant argues that sanctions are not warranted as plaintiff did not engage in meaningful meet and confer efforts and as plaintiff is proceeding in pro per, he cannot recover attorney's fees. Defendant notes that Andrei Serpik did not sign the motion papers and has made no appearance.

The Court finds that, as a self-represented litigant, plaintiff is not entitled to attorney fees. There is no limited-scope appearance by Andrei Serpik, nor did Andrei Serpik sign the motion papers.

ORDER

The motion to compel further responses to form interrogatories, set one is GRANTED. Defendant is ordered to respond further to form interrogatories, set one, within twenty days.

The motion to compel further responses to special interrogatories, set one is GRANTED in part and DENIED in part. Defendant is ordered to respond further to special interrogatories, nos. 1-27, 29-38, and 41-45, within twenty days.

The motion to compel further responses to request for production of documents, set one is GRANTED in part and DENIED in part. Defendant is ordered to serve further responses to request for production of documents, nos. 1, 12, and 13 and to produce responsive documents within twenty days.

Plaintiff's request for sanctions is DENIED.

Plaintiff is ordered to give notice of ruling.